

INDIAN POLITY &

CONSTITUTION

For SSC | UPSC | Railway | Banking | State PSC | Defence Exams

1. HISTORICAL BACKGROUND

- > Regulating Act 1773: First step by British Parliament to control East India Company. Created Supreme Court at Calcutta. Governor of Bengal became Governor-General of Bengal (Warren Hastings).
- > Pitt's India Act 1784: Established dual government (Court of Directors + Board of Control).
- > Charter Act 1833: Governor-General of Bengal became Governor-General of India. Ended commercial activities of East India Company.
- > Charter Act 1853: Separated legislative and executive functions. Introduced open competition for civil services.
- > Government of India Act 1858: Rule transferred from Company to Crown. Secretary of State for India created. Governor-General became Viceroy (Lord Canning - first Viceroy).
- > Indian Councils Act 1861: Indians associated with law-making (non-official members). Portfolio system introduced.
- > Indian Councils Act 1892: Introduced indirect elections (nomination on recommendation). Enlarged legislative councils.
- > Indian Councils Act 1909 (Morley-Minto Reforms): Direct elections introduced. Separate electorate for Muslims (communal representation).
- > Government of India Act 1919 (Montagu-Chelmsford Reforms): Dyarchy in provinces. Bicameral legislature at centre. Franchise extended.
- > Government of India Act 1935: Provincial autonomy. Federal scheme (never came into operation). All India Federation. RBI established (1935). Federal Court established.
- > Indian Independence Act 1947: Two dominions - India and Pakistan. Abolished office of Secretary of State. Governor-General given full powers.

2. MAKING OF THE CONSTITUTION

- > Constituent Assembly formed under Cabinet Mission Plan 1946.
- > Total members: 389 (later reduced to 299 after partition). Elected by provincial assemblies.
- > First meeting: December 9, 1946. Dr. Sachchidananda Sinha - temporary chairman.
- > Dr. Rajendra Prasad - permanent chairman (President of Constituent Assembly).
- > Drafting Committee: Chairman - Dr. B.R. Ambedkar. 7 members total.
- > Objective Resolution moved by Jawaharlal Nehru on December 13, 1946.
- > Constitution adopted on November 26, 1949 (Law Day/Constitution Day). Came into effect January 26, 1950 (Republic Day).
- > Time taken: 2 years, 11 months, 18 days. Total sessions: 11. Total days: 165.
- > Original Constitution: 395 Articles, 22 Parts, 8 Schedules.
- > Present Constitution: 470+ Articles, 25 Parts, 12 Schedules.

3. SALIENT FEATURES OF CONSTITUTION

- > Longest written constitution in the world.
- > Drawn from multiple sources: UK (Parliamentary system, Rule of Law, Single Citizenship), USA (Fundamental Rights, Judicial Review, Independence of Judiciary), Ireland (DPSP, Method of Presidential Election), Canada (Federation with strong centre, Residuary powers), Australia (Concurrent List, Joint Sitting), Germany (Suspension of FR during Emergency), South Africa (Amendment procedure), Japan (Procedure established by law), USSR (Fundamental Duties, Five Year Plans).
- > Blend of rigidity and flexibility. Federal with unitary bias.
- > Parliamentary form of government. Integrated and independent judiciary.
- > Fundamental Rights (Part III). Directive Principles of State Policy (Part IV).
- > Fundamental Duties (Part IVA - added by 42nd Amendment 1976).
- > Single citizenship. Universal adult suffrage (18 years - 61st Amendment 1989).
- > Secular, socialist, democratic republic (Preamble - 42nd Amendment added 'socialist' and 'secular').
- > Independent bodies: Election Commission, CAG, UPSC, Finance Commission.
- > Emergency provisions (National, State, Financial).

4. PREAMBLE

- > 'We the people of India' - source of authority is the people.
- > Key words: Sovereign, Socialist, Secular, Democratic, Republic.
- > Objectives: Justice (social, economic, political), Liberty (of thought, expression, belief, faith, worship), Equality (of status and opportunity), Fraternity (assuring dignity and unity/integrity of nation).
- > Socialist & Secular added by 42nd Amendment Act, 1976.
- > Preamble is part of Constitution (Kesavananda Bharati Case 1973).
- > Preamble is non-justiciable (cannot be enforced in court).
- > Preamble can be amended under Article 368 (established in Kesavananda Bharati case).

5. FUNDAMENTAL RIGHTS (Part III, Articles 12-35)

- > Originally 7 rights, now 6 (Right to Property removed by 44th Amendment 1978, now Article 300A - legal right).

(i) Right to Equality (Art 14-18):

- > Art 14: Equality before law and equal protection of laws.
- > Art 15: Prohibition of discrimination on grounds of religion, race, caste, sex, place of birth.
- > Art 16: Equality of opportunity in public employment.
- > Art 17: Abolition of untouchability.
- > Art 18: Abolition of titles (except military and academic).

(ii) Right to Freedom (Art 19-22):

- > Art 19: Six freedoms - speech/expression, assembly, association, movement, residence, profession.
- > Art 20: Protection against conviction for offences (ex-post-facto law, double jeopardy, self-incrimination).
- > Art 21: Right to life and personal liberty. Art 21A: Right to education (6-14 years, 86th Amendment 2002).
- > Art 22: Protection against arrest and detention.

(iii) Right against Exploitation (Art 23-24):

- > Art 23: Prohibition of traffic in human beings and forced labor.
- > Art 24: Prohibition of child labor (below 14 years) in factories/mines/hazardous jobs.

(iv) Right to Freedom of Religion (Art 25-28):

- > Art 25: Freedom of conscience, free profession, practice and propagation of religion.
- > Art 26: Freedom to manage religious affairs. Art 27: No tax for promotion of religion.
- > Art 28: No religious instruction in state-funded institutions.

(v) Cultural & Educational Rights (Art 29-30):

- > Art 29: Protection of interests of minorities. Art 30: Right of minorities to establish educational institutions.

(vi) Right to Constitutional Remedies (Art 32):

- > Art 32: Right to move Supreme Court for enforcement of FRs. Dr. Ambedkar called it 'Heart and Soul of Constitution'.
- > 5 Writs: Habeas Corpus (produce the body), Mandamus (command), Prohibition (forbid), Certiorari (quash), Quo Warranto (by what authority).

6. DIRECTIVE PRINCIPLES OF STATE POLICY (Part IV, Art 36-51)

- > Not enforceable by courts (non-justiciable). Guidelines for governance.
- > Based on Irish Constitution. Instrument of instructions.
- > Socialist: Art 38 (welfare state), Art 39 (equal pay for equal work), Art 39A (free legal aid), Art 41 (right to work), Art 42 (maternity relief), Art 43 (living wage), Art 43A (workers participation).
- > Gandhian: Art 40 (Panchayati Raj), Art 43 (cottage industries), Art 46 (SC/ST welfare), Art 47 (prohibition of intoxicating drinks), Art 48 (cow slaughter prevention).
- > Liberal-Intellectual: Art 44 (Uniform Civil Code), Art 45 (early childhood care - 6 years), Art 48 (agriculture modernization), Art 48A (environment protection), Art 49 (national monuments), Art 50 (separation of judiciary from executive), Art 51 (international peace).

7. FUNDAMENTAL DUTIES (Part IVA, Art 51A)

- > Added by 42nd Amendment 1976 on recommendation of Swaran Singh Committee. Originally 10, now 11.
- > 11th duty added by 86th Amendment 2002: Parents/guardians to provide education to children (6-14 years).
- > Key duties: Abide by Constitution, respect national flag/anthem, protect sovereignty/unity/integrity, defend country, promote harmony, value composite culture, protect natural environment, develop scientific temper, safeguard public property, strive towards excellence.

8. UNION EXECUTIVE

President (Art 52-62):

- > Head of State. Elected by electoral college (elected MPs + elected MLAs). Term: 5 years.
- > Qualifications: Citizen of India, 35 years age, qualified for Lok Sabha membership.
- > Removal: Impeachment (Art 61) - only for violation of Constitution. 2/3 majority in both houses.
- > Powers: Executive, Legislative, Military, Judicial (pardoning), Emergency, Diplomatic.
- > Pardoning power (Art 72): Pardon, Commute, Remit, Respite, Reprieve.
- > Ordinance power (Art 123): When Parliament not in session. Valid for 6 weeks after reassembly.

Vice-President (Art 63-71):

- > Ex-officio Chairman of Rajya Sabha. Elected by electoral college (all MPs of both houses).
- > Qualifications: Citizen, 35 years, qualified for Rajya Sabha membership. Term: 5 years.

Prime Minister & Council of Ministers (Art 74-75):

- > PM is head of government. Leader of majority party in Lok Sabha.
- > Council of Ministers collectively responsible to Lok Sabha (Art 75).
- > Categories: Cabinet Ministers, Ministers of State, Deputy Ministers.

9. PARLIAMENT

- > Bicameral: Rajya Sabha (Council of States) + Lok Sabha (House of the People).

Rajya Sabha:

- > Max 250 members (238 elected + 12 nominated by President for expertise in literature/science/art/social service).
- > Permanent house (not subject to dissolution). 1/3 members retire every 2 years. Term: 6 years.
- > Chairman: Vice-President. Minimum age: 30 years.

Lok Sabha:

- > Max 552 members (530 states + 20 UTs + 2 Anglo-Indians nominated - abolished by 104th Amendment 2020).
- > Present strength: 543. Term: 5 years (can be dissolved earlier). Minimum age: 25 years.
- > Speaker presides. Quorum: 1/10 of total membership.

Key Parliamentary Terms:

- > Money Bill: Can only be introduced in Lok Sabha (Art 110). RS has 14 days to return.
- > Joint Sitting (Art 108): Called by President on deadlock. Presided by Speaker. Not for Money Bills or Constitutional Amendment Bills.
- > No Confidence Motion: Only in Lok Sabha against Council of Ministers.
- > Question Hour: First hour of sitting. Zero Hour: After Question Hour (not in rules).

10. JUDICIARY

- > Supreme Court (Art 124-147): Apex court. Original + Appellate + Advisory jurisdiction.
- > CJI + 33 judges (current sanctioned strength: 34 including CJI).
- > Judges appointed by President on recommendation of Collegium (CJI + 4 senior judges).
- > Retirement age: SC - 65 years, HC - 62 years.
- > Art 141: Law declared by SC is binding on all courts in India.
- > Art 142: SC can pass any decree for complete justice.
- > Art 143: Advisory jurisdiction (President can seek opinion).
- > High Courts (Art 214-231): One for each state (or common for 2+ states). Original + Appellate + Supervisory jurisdiction.
- > Writ jurisdiction under Art 226 (wider than Art 32 - can issue for FRs AND ordinary legal rights).
- > Subordinate Courts (Art 233-237): District Courts, Sessions Courts, Magistrate Courts.

11. IMPORTANT AMENDMENTS

- > 1st Amendment (1951): Added 9th Schedule. Restrictions on FRs for land reform.
- > 7th Amendment (1956): Reorganization of states (14 states + 6 UTs).
- > 24th Amendment (1971): Parliament can amend any part including FRs.
- > 42nd Amendment (1976): 'Mini Constitution'. Added Socialist, Secular, Integrity to Preamble. Added Fundamental Duties. Reduced power of judiciary.
- > 44th Amendment (1978): Reversed many changes of 42nd. Right to Property removed from FRs. National Emergency only on 'armed rebellion' (not internal disturbance).
- > 52nd Amendment (1985): Anti-defection law (10th Schedule).
- > 61st Amendment (1989): Voting age reduced from 21 to 18 years.
- > 73rd Amendment (1992): Panchayati Raj (Part IX, 11th Schedule, 29 subjects).
- > 74th Amendment (1992): Municipalities (Part IXA, 12th Schedule, 18 subjects).
- > 86th Amendment (2002): Right to Education (Art 21A). 11th Fundamental Duty added.
- > 91st Amendment (2003): Limited Council of Ministers to 15% of total Lok Sabha strength.
- > 101st Amendment (2016): GST (Goods and Services Tax).
- > 103rd Amendment (2019): 10% EWS reservation in education and jobs.
- > 104th Amendment (2020): Extended SC/ST reservation for 10 more years. Abolished Anglo-Indian nomination.

12. IMPORTANT ARTICLES (Quick Reference)

Article	Subject
1	Name and territory of India
3	Formation/alteration of states
14-18	Right to Equality
19-22	Right to Freedom
21	Right to Life
21A	Right to Education (6-14 yrs)
32	Constitutional Remedies
44	Uniform Civil Code
50	Separation of Judiciary
51A	Fundamental Duties
72	President's pardoning power
74	Council of Ministers to aid President
110	Definition of Money Bill
112	Annual Financial Statement (Budget)
123	Ordinance power of President
143	Advisory jurisdiction of SC
148	CAG
280	Finance Commission
312	All India Services
324	Election Commission
352	National Emergency
356	President's Rule (State Emergency)
360	Financial Emergency
368	Amendment of Constitution
370	Special status of J&K (Abrogated 2019)
395	Repeals

13. SCHEDULES OF THE CONSTITUTION

Schedule	Subject
1st	Names of States and UTs & their territories
2nd	Salaries of President, Governors, Judges, CAG, Speaker
3rd	Oaths and Affirmations
4th	Allocation of seats in Rajya Sabha to States/UTs
5th	Administration of Scheduled Areas & Tribes
6th	Administration of Tribal Areas in Assam, Meghalaya, Tripura, Mizoram
7th	Division of powers: Union List (100), State List (61), Concurrent List (52)
8th	22 Official Languages (originally 14, now 22 after 92nd Amendment 2003)
9th	Acts protected from judicial review (added by 1st Amendment)
10th	Anti-Defection Law (added by 52nd Amendment 1985)
11th	29 subjects of Panchayats (added by 73rd Amendment 1992)
12th	18 subjects of Municipalities (added by 74th Amendment 1992)